

**LAW & MOTION CALENDAR
TENTATIVE RULINGS**

May 21, 2026

**Judge Melissa R. McCormick
Dept. CX105**

Department CX105 hears law and motion on Thursdays at 2:00 p.m.

Court reporters: Official court reporters typically are not provided in this department for any proceedings. If the parties desire the services of a court reporter, the parties should follow the procedures set forth on the court's website at www.occourts.org.

Tentative rulings: The court endeavors to post tentative rulings on the court's website by 9:00 a.m. the day of the hearing. Tentative rulings may not be posted in every case. Please do not call the department for tentative rulings if tentative rulings have not been posted.

Submitting on tentative rulings: If all parties intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5305. Please do not call the department unless all parties submit on the tentative ruling. If all parties submit on the tentative ruling and so advise the court, the tentative ruling will become the court's final ruling, and the prevailing party shall give notice of the ruling.

Appearances and public access: Appearances, whether in person or remote, must comply with Civil Procedure Code section 367.75, California Rule of Court 3.672, Orange County Superior Court Local Rule 375, and Orange County Superior Court Appearance Procedure and Information—Civil Unlimited and Complex (pub. 9/9/22).

Unless the court orders otherwise, remote appearances will be conducted via Zoom. All counsel and self-represented parties appearing via Zoom must check in through the court's civil remote appearance website before the hearing begins. Check-in instructions are available on the court's website.

The public may attend hearings by coming to court or via remote access as described above.

Photographing, filming, recording and/or broadcasting court proceedings are prohibited unless authorized pursuant to California Rule of Court 1.150 or Orange County Superior Court Local Rule 180.

Non-appearances: If nobody appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also might make a different order. See *Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442 n.1.

NO.	CASE NAME	MATTER
1	Aguilar v. Computer Sciences Corporation 2023-01310026	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$1,050,000 class action and PAGA settlement. Subject to plaintiff's submission of the documents identified below, the court grants the motion as follows: \$5,000.00 for enhancement award to plaintiff (not to exceed);

	\$315,000.00 for attorneys’ fees (not to exceed); \$30,000.00 for attorneys’ costs (not to exceed); \$6,990.00 for settlement administration fees (not to exceed); and \$50,000.00 total PAGA penalties (\$37,500.00 to LWDA). 1. The parties are ordered to revise the notice as follows: a. In section 2, the extra period at the end of the first paragraph should be removed; b. In section 5, subsection (2) should be removed; c. In section 5, the amount of attorneys’ fees in subsection (3)(a) should be revised as stated above; d. Section 8 should also address PAGA Pay Period challenges, as stated in the settlement agreement; e. In section 9, the released parties described in the first sentence of the first paragraph and the first sentence of the third paragraph are inconsistent with the settlement agreement and should be revised; f. In section 12, the second sentence of the second paragraph should be removed, as it is inconsistent with the settlement agreement; g. The method of submitting the exclusion form stated on the form (i.e., postmarked only) is inconsistent with the methods stated in the settlement agreement and should be revised; h. The methods of submitting the objection form stated on the form (i.e., mail and fax only) are inconsistent with the methods stated in settlement agreement and should be revised; and i. The method of submitting the workweek and pay period dispute form stated on the form (i.e., mail only) is inconsistent with the methods stated in the settlement agreement and should be revised. The form should also state the deadline for its submission. Plaintiff is ordered to file and serve <u>by May 28, 2026</u> a revised proposed order (stating the above amounts) with all exhibits attached: (1) a fully executed copy of the settlement agreement; (2) a fully executed copy of the amendment to the settlement agreement; (3) the notice packet (in English and Spanish) (revised as stated above). The final approval hearing is scheduled for <u>January 7, 2027 at 2:00 p.m.</u> in Department CX105. The motion for final approval shall be filed at least 16 court days before the hearing. See Department CX105 Guidelines for Approval of Class Action Settlements and PAGA Settlements (www.occourts.org).
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		Plaintiff is ordered to give notice, including to the LWDA, and to file a proof of service.
2	Franco v. Padilla Construction Company 2023-01339685	<u>Plaintiff Gustavo Chavez Franco's Motion for Attorneys' Fees</u> Plaintiff Gustavo Chavez Franco moves for an award of attorneys' fees following the January 13, 2026 judgment (ROA 246) entered in this matter, in which the court awarded plaintiff, in his representative capacity under the California Private Attorneys General Act (PAGA) on behalf of the Labor Workforce Development Agency (LWDA) and the PAGA aggrieved employees, \$109,940.00 in civil penalties. Plaintiff's counsel seeks an award of \$601,796.66 in attorneys' fees, based on an asserted lodestar of \$401,197.77, 640.75 claimed hours of attorney work, and a 1.50 positive multiplier. Brief (ROA 261) at 1:14-18. Plaintiff also seeks \$5,490.33 in costs, a \$5,000 "incentive award for serving as PAGA representative," and \$5,000 in administration fees "for expenses in facilitating payment to the aggrieved employees and the LWDA." For the following reasons, plaintiff's motion is granted in part and denied in part. Plaintiff alleged a single cause of action seeking civil penalties under PAGA based on a single legal claim that defendant Padilla Construction Company violated Labor Code section 226(a)(6) by failing to furnish employees with wage statements containing the inclusive dates of each pay period during the period May 19, 2022 to June 21, 2023. The court (Judge Lon Hurwitz) granted plaintiff's motion for summary adjudication on August 30, 2024, finding that Padilla's wage statements during the period May 19, 2022 to June 21, 2023 did not comply with section 226(a)(6). 8/30/24 Order (ROA 133). The parties thereafter proposed that they brief the issue of the amount of civil penalties to be imposed for Padilla's violation of section 226(a)(6), that the parties' previously filed Joint Stipulation of Undisputed Facts (filed 4/26/24, ROA 64) apply to this issue, and that following the filing of the parties' opening and reply briefs, the court hold oral argument on the penalties issue. ROA 150. On October 9, 2024 Judge Hurwitz entered an order approving the parties' proposal. ROA 156. Judge Hurwitz thereafter retired. This case was assigned to this department on March 5, 2025. ROA 182. At the July 10, 2025 initial case management conference, the court scheduled this matter for oral argument on December 11, 2025 on the penalties issue. The court heard argument on December 11, 2025, and issued its oral statement of decision that day. For the reasons set forth in its oral statement of decision, the court thereafter entered judgment in plaintiff's favor, in his representative capacity under PAGA on behalf of the LWDA and the PAGA aggrieved employees, and against defendant, in the amount of \$109,940.00, calculated based on 10,994 violative wage statements and \$10.00 per violative wage statement. The primary litigation activities in this case consisted of a demurrer, the parties' cross-motions for summary judgment, and the PAGA civil penalties bench trial. The parties also filed a handful of case management conference statements, joint status conference